

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

INTERNATIONAL LONGSHOREMEN'S ASSOCIATION,
Complainant

v.

GATEWAY TERMINALS, LLC; CHARLESTON STEVEDORING
CO., LLC; PORTS AMERICA FLORIDA, INC.; CERES MARINE
TERMINALS, INC.; AND SSA ATLANTIC, LLC, *Respondents*.

DOCKET NO. 22-12

Served: May 10, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON SECOND MOTION TO AMEND SCHEDULE

On March 17, 2023, Complainant filed a request for a 21-day extension of time of the jurisdiction discovery and briefing schedule previously set by Order on Motion to Bifurcate, Scheduling Order, and Protective Order ("Scheduling Order") served on March 9, 2023. On March 17, 2023, the undersigned granted the motion in part and extended the briefing schedule. Order on Motion to Amend Schedule at 2-3.

On May 10, 2023, the day the Complainant's brief was due under the amended briefing schedule, Complainant filed another motion to extend the discovery and briefing schedule. There was no argument to extend the discovery schedule in either the March 17, 2023 motion, or the current motion. Since no argument supporting the extension of the discovery deadline has been made in the current motion, and the deadline has passed, it appears that Complainant mistakenly used the same motion title but does not seek to reopen and extend discovery.

Complainant asserts that Respondents consent to the current motion and the second proposed amended schedule. An email to the parties confirmed that Respondents do not plan to respond to the current motion. Complainant seeks what it refers to as an extension of the briefing dates set in the Amended Scheduling Order, so the motion will be treated as a second motion to amend the scheduling order ("Second Motion to Amend Schedule").

The current motion to amend the briefing schedule, like the March 17, 2023 motion, indicates that Complainant's counsel has conflicts with the schedule, including a recently filed brief.¹ Complainant also acknowledges in its motion that the "due date for the ILA's brief in this

¹ In the March 17, 2023 motion, Complainant indicated its brief in the Fourth Circuit case was due on April 28, 2023, but in the current motion it alleges the brief was due on May 5, 2023.

proceeding was mistakenly calendared as May 15, 2023.” Second Motion to Amend Schedule at 1. Based on the calendaring error made by Complainant’s attorneys, the current briefing schedule is untenable, and Complainant has established good cause to amend the briefing schedule.

This is the fifth extension of time requested during this proceeding. The parties are urged to remain vigilant regarding the briefing schedule below as no further extension requests will be permitted for the jurisdictional phase of this proceeding. If Complainant fails to file the jurisdictional brief by the deadline below, the case may be dismissed for failure to prosecute. 46 C.F.R. § 502.72(b).

Good cause having been shown to amend the briefing schedule, it is hereby ordered that Complainant’s second motion to amend the scheduling order, be **GRANTED**.

The parties are hereby **ORDERED** to follow this second amended schedule:

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| May 15, 2023 | Complainant’s brief relating to jurisdiction; any remaining discovery issues relating to jurisdiction should be identified in the brief (what was requested, why it is relevant, and what it might show). |
| June 5, 2023 | Respondents’ opposition brief relating to jurisdiction; any remaining discovery issues relating to jurisdiction should be identified in the brief (what was requested, why it is relevant, and what it might show). |
| June 19, 2023 | Complainant’s reply brief and responses to proposed findings of fact relating to jurisdiction. |

The parties are reminded that no discovery motions will be permitted on the jurisdictional portion of this proceeding and any objections to discovery issues should be addressed in the parties’ briefs, as indicated above.



Linda S. Harris Crovella
Administrative Law Judge